

		particularly with respect to a party’s initial complaint, and “it ordinarily constitutes an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable possibility that the defect can be cured by amendment.” (<i>Ibid.</i>) The court is not persuaded by <i>Moorer v. Noble L.A. Events, Inc.</i>, (2019) 32 Cal.App.5th 736. The holding of <i>Moorer</i> does not restrict standing to bring Private Attorney General Act (PAGA) claims or the ability to amend complaints to add such claims. Rather, it affects only the distribution of any penalties ultimately recovered. Brown shall e-file a copy of the proposed pleading for filing within three days. Brown to give notice.
3	CLAIRMONT vs. FORD MOTOR COMPANY 2025-01510533	Motion to Dismiss <i>Continued. See minute order dated 6/3/26.</i>
4	Chao vs. Air Combat USA, Inc. 2022-01258475	Motion to Be Relieved as Counsel <i>Continued. See minute order dated 5/19/26.</i>
5	Khuu vs. Fairmont North Tustin 2025-01515709	Demurrer to Complaint Defendant Fairmont North Tustin’s demurrer to the complaint of Aaden Khuu and Berry Phan is sustained in its entirety with ten days leave to amend. Fairmont to give notice.
6	Nava vs. Walt Disney Parks and Resorts U.S., Inc. 2026-01553496	Demurrer to Complaint <i>Off calendar. See notice filed 5/27/26.</i>
7	Resource Environmental vs. Griffin Structures 2025-01514398	Demurrer to Complaint <i>Off calendar. See noticed filed 5/21/26.</i>
8	Rume Medical Group, Inc vs. Lee M.D	Motion to Appear Pro Hac Vice (Two Motions) The applications by Kelly Kramer and Hiral D. Mehta to appear

	2025-01481522	pro hac vice are GRANTED. (Cal. Rules of Court, Rule 9.40.) <i>Case Management Conference set this date is vacated.</i> <i>Jury Trial set June 21, 2027 at 8:30 a.m. in Department C44.</i> <i>Trial estimate: 7 days</i> Moving parties shall give notice.
9	Truong vs. MKT, Inc. 2025-01495218	Demurrer to Amended Complaint Defendants Nguyen Thuy Linh and D&L Tran Corporation’s demurrer to plaintiff Manh Van Truong aka Mike Vungtau’s Second Amended Complaint [SAC] is SUSTAINED as to the 3rd cause of action for false light invasion of privacy and 5th cause of action for intentional and/or negligent infliction of emotional distress, with leave to amend, and otherwise OVERRULED. (Code Civ. Proc., § 430.10, subd. (e) [authorizing demurrer for failure to state facts sufficient to constitute a cause of action].) Plaintiff is granted 15 days’ leave to amend. Moving parties shall give notice. <u>1st cause of action: commercial misappropriation (Civ. Code, § 3344); 2nd cause of action: common law misappropriation.</u> These causes of action state sufficient facts. (Civ. Code, § 3344 [authorizing damages / civil penalties against “[a]ny person who knowingly uses another's name, voice, signature, photograph, or likeness, in any manner, on or in products, merchandise, or goods, or for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services, without that person's prior consent”]; <i>Kirby v. Sega of America, Inc.</i> (2006) 144 Cal.App.4th 47, 55 [common law misappropriation elements]; SAC, ¶¶ 3-12, 14 [misappropriation, lack of consent, proximately caused damages].) Contrary to moving parties’ contentions, the SAC sufficiently alleges agency and/or ratification, either of which is sufficient to support joint liability by these moving parties. (SAC, ¶¶ 3, 5 [agency], 6, 11 [ratification]; <i>Skopp v. Weaver</i> (1976) 16 Cal.3d 432, 437 [“numerous cases have held a pleading of agency an averment of ultimate fact”]; <i>Spahn v. Guild Industries Corp.</i> (1979) 94 Cal.App.3d 143, 156 [“an agent's liability for